

1. Session and Chapter.	2. Short Title.	3. How far continued.	4. Amending Acts.
(27.) 47 & 48 Vict. c. 70.	The Municipal Elections (Corrupt and Illegal Practices) Act, 1884.	The whole Act	56 & 57 Vict. c. 73.
(28.) 49 & 50 Vict. c. 29.	The Crofters Holdings (Scotland) Act, 1886.	As to the powers of the Commissioners for the enlargement of holdings, s. 22.	50 & 51 Vict. c. 24. 51 & 52 Vict. c. 63. 54 & 55 Vict. c. 41.
(29.) 51 & 52 Vict. c. 55.	The Sand Grouse Protec- tion Act, 1888.	The whole Act.	—
(30.) 52 & 53 Vict. c. 40.	The Welsh Intermediate Education Act, 1889.	As to the powers of the joint education committee and the suspension of the powers of the Charity Commis- sioners.	53 & 54 Vict. c. 60.
(31.) 58 & 59 Vict. c. 21.	The Seal Fisheries (North Pacific) Act, 1895.	The whole Act.	—
(32.) 59 Vict. c. 1.	The Local Government (Elections) Act, 1896.	The whole Act.	—
(33.) 59 & 60 Vict. c. 48.	The Light Railways Act, 1896.	As to the powers of the Light Railway Commissioners.	—

PART II.

32 & 33 Vict. c. 56.	The Endowed Schools Act, 1869.	As to the powers of making schemes.	36 & 37 Vict. c. 87. 37 & 38 Vict. c. 87. 52 & 53 Vict. c. 40.
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CHAPTER 34.

An Act to amend the Congested Districts Board (Ireland)
Acts. [17th August 1901.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1.—(1.) Where the Congested Districts Board have, whether before or after the passing of this Act, purchased an estate and the tenants of holdings thereon to the extent of not less than three-fourths in number and rateable value so request, the Board may serve a notice on any tenant thereon which shall have the effect of determining his tenancy in his holding as from the date mentioned in the notice, not being less than six months from the service thereof.

Provision for
facilitating
resales of land
by Congested
Districts
Board.

(2.) Every such notice shall contain an undertaking by the Board that they will, within the period mentioned in that behalf in the notice or so soon thereafter as practicable, provide the tenant with a new holding on the same or an adjacent or neighbouring estate, subject to a rent not exceeding that payable by him for his original holding, and of not less value, in respect of the land comprised in the new holding and the buildings and improvements thereon, than the value of the land comprised in the former holding and the buildings and improvements thereon respectively at the date of the purchase of the estate by the Board.

(3.) If any such tenant is dissatisfied with his new holding or refuses to enter into possession thereof, he may, within four months after he has been served with a notice stating that the Board are prepared forthwith to put him into possession thereof, apply to the county court within the jurisdiction of which the estate is situate, and that court may, subject to rules of court, hear and decide upon the application.

(4.) If, where the tenant is dissatisfied with the new holding, the Court decides that the value thereof is, in respect of any of the matters aforesaid, less than the value of the former holding, the Court may, after taking into account, in connexion with such inferiority in value, the rent payable for the new holding and every circumstance which the Court considers material, order such compensation as it may deem fit to be paid by the Board to the tenant and, in addition or as an alternative, may order the Board to erect such buildings or make such other improvements on the holding as the Court may think reasonable.

(5.) Where a tenant refuses to enter into possession of the new holding, the Court may order the payment to him by the Board of such sum as, in the opinion of the Court, is equal to the value of his interest in his former holding.

(6.) The county court may, upon application, order that such charges, liabilities and equities as affect the tenant's interest in his former holding shall either continue to affect that holding or be transferred to his new holding.

(7.) Any decision of the county court under this section shall be final, and any notice under this section determining a tenancy may be enforced by a writ of possession of the county court, but no such writ shall be executed in pursuance of this section in the case of any tenant until the Board certify to the sheriff that they are prepared forthwith to put such tenant into possession of his new holding.

(8.) Where a matter requiring the cognizance of the Court under this section arises in respect of an estate situate within the jurisdiction of more than one county court, the county court within the jurisdiction of which the greater part in rateable value of the estate is situate shall take cognizance of the matter.

(9.) Every notice under this section shall be served on the tenant affected thereby either personally or by leaving the same at his residence or by transmitting the same by registered letter to his last known address.

(10.) The Court may award costs to or against any party to any proceedings under this section and, in addition to any other power, may, where of opinion that a reasonable offer for the payment of compensation or the execution of any works has been made by the Board, order a tenant to pay any costs incurred by the Board after the date of the offer. Any costs ordered to be paid by a tenant under this section may be deducted from any compensation payable to him thereunder.

(11.) Rules of court may regulate the practice and procedure under this section.

(12.) In this section the expression "estate" includes part of an estate.

Extension of
44 & 45 Vict.
c. 49. s. 5 (5)
in case of
land purchased
by the Board.

2. The right to enter upon a holding during the continuance of a statutory term conferred on a landlord by subsection (5) of section five of the Land Law (Ireland) Act, 1881, for the purposes therein specified; is hereby conferred on the Congested Districts Board and any person authorised by them in that behalf, in respect of any holding, not subject to a statutory term, which is situate upon land purchased by that Board; and, for enforcing the right conferred by this section, the Board shall have the like remedies as in the case of a holding subject to a statutory term.

Provision for
exercise of
powers by
Board in
respect of
certain lands.

3. Where the Congested Districts Board have, whether before or after the passing of this Act, purchased land elsewhere than in a congested districts county, the Lord Lieutenant may, if he thinks fit, on the report of the Board by Order in Council, declare that for the purposes of this section the land shall be treated as part of such congested districts county as he may determine, and the Board shall thereupon have, with respect to that land, all the powers conferred on them by the Congested Districts Board (Ireland) Acts as amended by this Act.

Short title and
construction.

4.—(1.) This Act may be cited as the Congested Districts Board (Ireland) Act, 1901.

(2.) This Act shall be construed and may be cited with the Congested Districts Board (Ireland) Acts.